

ORDINANCE NO. 36-25

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, AMENDING THE CODE OF ORDINANCES, BY AMENDING TITLE 3, "ADMINISTRATION," CHAPTER 35, "EMPLOYEE POLICIES AND BENEFITS," SECTION 35.001, "DEFINITIONS", SECTION 35.002, "APPLICATION; EXCLUSIONS," AND SECTION 35.003, "ADOPTION OF CODE OF RULES AND REGULATIONS" TO RENAME EACH SECTION AND TO PROPERLY REFLECT THE CITY'S PERSONNEL POLICIES AND PROCEDURES IN THE CITY'S REGULATIONS; PROVIDING A SEVERABILITY CLAUSE; AUTHORITY TO CODIFY; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, on May 15, 2018, the City Commission of the City of Delray Beach amended its Code of Ordinances in order to adopt the City's 'Personnel Policies and Procedures Manual; and

WHEREAS, it is necessary to further amend the Code of Ordinances to properly reflect this change to employee policies and benefits; and

WHEREAS, the City Commission has determined that this Ordinance is in the best interest and promotes the health, safety, and welfare of the citizens, residents, and businesses of the City of Delray Beach.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, AS FOLLOWS:

Section 1. The above recitations set forth above are incorporated herein.

Section 2. Title 3, "Administration," Chapter 35, "Employee Policies and Benefits," Section 35.001, "Definitions," of the Code of Ordinances of the City of Delray Beach, Florida, shall be amended as follows:

PERSONNEL SYSTEM ESTABLISHED.

The City Commission hereby establishes a personnel system to govern the appointment of employees, classification and pay plans, promotions, force reductions, removals, working conditions, grievances, relationships with employee organizations, and other policies and procedures necessary to the administration of the city personnel system.

Section 3. Title 3, "Administration," Chapter 35, "Employee Policies and Benefits," Section 35.002, "Application; Exclusions," of the Code of Ordinances of the City of Delray Beach, Florida, shall be amended as follows:

IMPLEMENTATION OF THE PERSONNEL SYSTEM.

The City Manager is empowered to implement the personnel system established by the City Commission. The City Manager shall prepare rules and regulations to implement the system in the form of a Personnel

Policies and Procedures Manual ("PPPM"), or such other format as the City Manager may determine is appropriate. The PPPM shall be effective upon issuance by the City Manager.

Section 4. Title 3, "Administration," Chapter 35, "Employee Policies and Benefits," Section 35.003, "Adoption of Code of Rules and Regulations," of the Code of Ordinances of the City of Delray Beach, Florida, shall be amended as follows:

Sec. 35.003. EXCLUSIONS.

The provisions of the PPPM shall not apply to:

- (A) Employees covered under the terms of a collective bargaining agreement unless expressly stated in the CBA; and
- (B) Persons appointed by the City Commission.

Section 5. All ordinances or parts thereof in conflict or inconsistent with the provisions of this Ordinance are hereby repealed.

Section 6. Should any section or provision of this Ordinance or any portion thereof, any paragraph, sentence, or word be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of the remainder hereof as a whole or part thereof other than the part declared to be invalid.

Section 7. Specific authority and direction is hereby given to the City Clerk to codify this Ordinance.

Section 8. This Ordinance shall become effective immediately upon its passage on second and final reading and shall apply to all existing and future applications for permits.

PASSED AND ADOPTED in regular session on second and final reading on this the 6th day of January, 2026.

ATTEST:

Alexis Givings
Alexis Givings, City Clerk

Thomas F. Carney, Jr.
Thomas F. Carney, Jr., Mayor

First Reading December 8, 2025
Second Reading January 6, 2026

Approved as to form and legal sufficiency:

Lynn Gelm
Lynn Gelm, City Attorney



Policies and Procedures Manual ("PPPM"), or such other format as the City Manager may determine is appropriate. The PPPM shall be effective upon issuance by the City Manager.

Section 4. Title 3, "Administration," Chapter 35, "Employee Policies and Benefits," Section 35.003, "Adoption of Code of Rules and Regulations," of the Code of Ordinances of the City of Delray Beach, Florida, shall be amended as follows:

Sec. 35.003. EXCLUSIONS.

The provisions of the PPPM shall not apply to:

(A) Employees covered under the terms of a collective bargaining agreement unless expressly stated in the CBA; and

(B) Persons appointed by the City Commission.

Section 5. All ordinances or parts thereof in conflict or inconsistent with the provisions of this Ordinance are hereby repealed.

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Section 7. Specific authority and direction is hereby given to the City Clerk to codify this Ordinance.

Section 8. This Ordinance shall become effective immediately upon its passage on second and final reading and shall apply to all existing and future applications for permits.

PASSED AND ADOPTED in regular session on second and final reading on this the 6th day of _____, 2025.

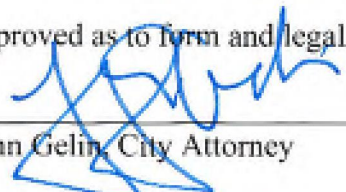
ATTEST:


Alexis Givings, City Clerk

 For
Thomas F. Carney, Jr., Mayor

First Reading December 8, 2025
Second Reading January 6, 2026

Approved as to form and legal sufficiency:


Lynn Gelin, City Attorney



CITY OF DELRAY BEACH
CITY ATTORNEY'S OFFICE
200 NW 1ST Avenue, Delray Beach, FL 33444
561-243-7090



Legal Review Form: **Ordinances**

To be Completed by Requesting Department: Human Resources

Date of Submission: 11/18/25

Submitted by: Duane D'Andrea

Ordinance No: 36-25

Caption:

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, AMENDING THE CODE OF ORDINANCES, BY AMENDING TITLE 3, "ADMINISTRATION," CHAPTER 36, "EMPLOYEE POLICIES AND BENEFITS," SECTION 36.0501, "TERMINATIONS," SECTION 36.0502, "APPLICATION, PROMOTIONS," AND SECTION 36.0503, "ADOPTION OF CODES OF RULES AND REGULATIONS" TO RENAMING EACH SECTION AND UPDATE THE CITY'S PERSONNEL SYSTEM, PROVIDING A SEVERABILITY CLAUSE, AUTHORITY TO CODIFY, AND PROVIDING AN EFFECTIVE DATE.

Anticipated 1st Reading Date: 12/8/25

Anticipated 2nd Reading Date: 1/6/26

Note: Business Impact Estimate Form must be included with ordinance.

To be Complete by City Attorney's Office:



This document is approved as to form and legal sufficiency as submitted.



This document is not approved as to form and legal sufficiency for the following reason(s):

Please resubmit with the following changes:

Kelly Brandon

Attorney